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No. 98-376

IN THE

Supreme Court of the United States

OCTOBER TERM, 1997

WARNER JACKSON, *et al.*,

Petitioners,

v.

JOHN T. BENSON, *et al.*,

Respondents.

On Petition for Writ of Certiorari to the Supreme Court of Wisconsin

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BRIEF IN OPPOSITION

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QUESTION PRESENTED

Whether the Milwaukee Parental Choice Program—which, in conjunction with existing programs within the Milwaukee Public School ("MPS") system, affords low-income MPS families the opportunity to educate their children at public, private non-sectarian, or private sectarian schools—violates the Establishment Clause?

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INTRODUCTORY STATEMENT

Respondents John T. Benson, *et al.* ("the State of Wisconsin" or "the State") hereby oppose the Petition for Writ of Certiorari. The issue presented in this case is whether the Milwaukee Parental Choice Program—a "school choice" program which, in conjunction with existing programs within the Milwaukee Public School ("MPS") system, affords low-income MPS families the opportunity to educate their children at public, private non-sectarian, or private sectarian schools—violates the Establishment Clause of the First Amendment (as incorporated by the Fourteenth Amendment). That issue is of profound legal and practical importance, both to Wisconsin and to the Nation. Nonetheless, two factors counsel in favor of awaiting a later opportunity to address the constitutionality of school choice programs.

First, contrary to Petitioners' assertion, this important federal question has *not* been decided by the Supreme Court of Wisconsin "'in a way that conflicts with relevant decisions of this Court.'" Pet. at 9 (quoting Sup. Ct. R. 10(c)). To the contrary, a ruling *invalidating* the Milwaukee Parental Choice Program ("the expanded Choice Plan") on Establishment Clause grounds would have been in conflict with a half-century's worth of this Court's precedents—stretching from *Everson v. Board of Educ.*, 330 U.S. 1 (1947), through more recent decisions such as *Mueller v. Allen*, 463 U.S. 388 (1983), *Witters v. Washington Dep't of Servs. for the Blind*, 474 U.S. 481 (1986), *Zobrest v. Catalina Foothills Sch. Dist.*, 509 U.S. 1 (1993), *Rosenberger v. Rector and Visitors of Univ. of Virginia*, 515 U.S. 819 (1995), and *Agostini v. Felton*, 117 S. Ct. 1997 (1997). The Wisconsin court conducted a thorough review of this Court's Establishment Clause jurisprudence, and, based on that review, correctly ruled that any state funding that flows to sectarian schools under the expanded Choice Plan does so only on a *neutral* and *indirect* basis, and therefore is constitutionally permissible under the Establishment Clause.

Second, the State agrees with Petitioners that this Court would provide a valuable service by clarifying whether its 1973

decision in *Committee for Public Educ. & Religious Liberty v. Nyquist*, 413 U.S. 756, remains "good law." This case, however, presents a poor opportunity for such clarification. The Wisconsin court did not dispute that *Nyquist* constitutes "good law"; it simply determined—and correctly so—that *Nyquist* was "not controll[ing]" because the expanded Choice Plan is distinguishable from the New York tuition reimbursement program invalidated in *Nyquist*. For example, the state court concluded that whereas the *Nyquist* program "directed aid exclusively to private schools and their students," the expanded Choice Plan, "viewed in its surrounding context, merely adds religious schools to a range of pre-existing educational choices available to MPS children." Pet. App. 19a n.9. Because *Nyquist* is distinguishable in this and other ways, this case does not present a fitting opportunity for the Court to declare definitively whether *Nyquist* remains "good law," which is the sort of ruling Petitioners appear to be seeking. Instead, the case presents only an opportunity to determine once again the extent to which certain *dictum* in *Nyquist* has relevance in other factual settings. A better vehicle for accomplishing Petitioners' goal—*i.e.*, for clarifying, once and for all, whether *Nyquist* remains "good law"—would be a case in which a lower court found the challenged law *indistinguishable* from *Nyquist*, and expressly stated that the court was constrained to follow *Nyquist*, notwithstanding its apparent obsolescence. It is possible that such a ruling will emerge in the near future: Although there is no current lower court conflict regarding the constitutionality of school choice programs, the high courts of Arizona, Maine, Ohio and Vermont are presently considering similar challenges to school choice programs.

For these reasons, the State respectfully suggests that resolution of the critically important question of the constitutionality of school choice programs should await a more suitable vehicle, which may emerge as more lower courts are called upon to resolve that question.

COUNTERSTATEMENT OF THE CASE

Any consideration of the constitutionality of the expanded Choice Plan must begin with a frank recognition of the serious problems facing the MPS. It is beyond dispute that the students and schools in the MPS face the most profound educational challenges in the State of Wisconsin. Indeed, in a decision upholding the constitutionality of the original version of the Choice Plan, the Wisconsin Supreme Court recognized that "the Milwaukee Public School District has significantly greater education and poverty problems than any other school district in the state." *Davis v. Grover*, 166 Wis.2d 501, 529, 480 N.W.2d 460, 469 (1992). The court based that assessment on "[t]he statistical data," which "clearly illustrates that the socioeconomic disparities and the educational problems are greater in the large urban area of Milwaukee than any other part of Wisconsin." *Id.* at 529-30, 480 N.W.2d at 470; *see also Kukor v. Grover*, 148 Wis.2d 469, 482-83, 436 N.W.2d 568, 573-74 (1989).

By any measure of educational performance, MPS has performed dismally. For example, in 1989, when the original Choice Plan was under consideration, the dropout rate for high-school students reached 14.4 percent. *See Davis*, 166 Wis.2d at 529, 480 N.W.2d at 469. At the same time, schools in the rest of the state experienced a much lower dropout rate of 3.11 percent. *See id.* In 1989, less than 45 percent of MPS students graduated from high school within six years—down from 57 percent just five years earlier. *See id.* at 531, 480 N.W.2d at 470. And of those who did graduate within six years in 1989, more than one-third did so with a "D" average. *See id.*

The Wisconsin Supreme Court in *Davis v. Grover* found that these realities "dramatically show the need for legislative attention." *Id.* at 529, 480 N.W.2d at 469.

I. The Milwaukee Parental Choice Program: As Originally Enacted, and as Subsequently Expanded.

That legislative attention led to the enactment of the original Milwaukee Parental Choice Program in 1989 ("the original Choice Plan"), and continued with the expanded Choice Plan now under challenge. 1995 Wis. Act 27, §§ 4002-09; Wis. Stat. § 119.23. As described below, all of these efforts at educational reform by the Wisconsin legislature have been directed, first and foremost, at solving an educational crisis affecting students in the State's largest public school system—not at promoting private sectarian education.

A. The original Choice Plan.

Over the past 25 years, a variety of programs—including desegregation, special school financing, and the introduction of specialized magnet schools—have been initiated to address MPS' unique problems. None of these programs averted the worsening situation. As the Wisconsin Supreme Court acknowledged in *Davis*, the original Choice Plan was a direct response to the continuing poor performance of Milwaukee students despite decades of state programming targeted at reforming MPS: "The program [was] an attempt to identify factors which could improve the quality of education." *Davis*, 166 Wis. 2d at 512 n.2, 480 N.W.2d at 462 n.2.

The Wisconsin legislature, long familiar with choice-inspired solutions to educational problems, responded to the troubles of the MPS system in 1989 by enacting the original Choice Plan, Wis. Stat. § 119.23 (West 1991 & Supp. 1994). The original Plan provided a limited number of MPS students[1] from low-income families[2] the opportunity to attend certain

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[1] The original Plan was limited in scope, affording these expanded educational opportunities to only 1.5 percent of MPS students.

[2] Participation in the Plan was, and remains, limited to families whose (continued...)

private schools, which had elected to participate in the Plan. The original Plan was limited to "nonsectarian" private schools. *See* Wis. Stat. § 119.23(2)(a). Under the original Choice Plan, therefore, financially-strapped families in Milwaukee could choose among several options for the education of their children, including neighborhood public schools, public magnet schools, and non-sectarian private schools. The only educational option denied these parents was sectarian private schools.

B. The expanded Choice Plan.

The limited nature of the original Choice Plan hampered its ability to solve the ills of the MPS. The Governor of Wisconsin, Hon. Tommy G. Thompson, responded to these shortcomings by proposing an expansion of the original Plan to ensure that low-income families would have the same full range of educational options that was available to other families. Specifically, the Governor proposed amending the original Plan to include sectarian schools and thereby eliminate any discrimination among private schools. *Id.*

After extensive public hearings and floor debate, the legislature enacted the expanded Plan. *See* 1995 Wis. Act 27, §§ 4002-09. The amendments effected a number of changes to the original Plan, all tailored to ensure the efficacy and neutrality of the program. Some of the amendments addressed aspects of the original Plan other than its exclusion of sectarian schools. For example, § 4003 of the amendments expanded the number of Milwaukee area children eligible to participate in the Plan—from 1.5 percent of MPS students in the original Plan, to 15 percent under the expanded Plan. Other amendments, meanwhile, related to the opening of the Plan to sectarian school participation.

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[2] (...continued)
income does not exceed 175 percent of the poverty level. Wis. Stat. § 119.23(2)(a)(1).

First, the legislature struck the word "non-sectarian" from the statute, thereby expanding the original Plan to encompass both private non-sectarian and private sectarian schools located in Milwaukee. *See id.* at § 4002; Wis. Stat. § 119.23(2)(a). By virtue of this expansion, the expanded Plan rounds out the battery of educational options available to parents of Milwaukee students.

Second, to ensure that no private schools—sectarian or nonsectarian—receive any monies not directly related to the cost of education, the legislature also changed the basis for determining payment to the schools. Under the original Plan, schools received (for each student attending pursuant to the Plan) an amount equal to the total amount to which MPS is entitled under Wis. Stat. § 121.08, divided by the district's membership. Under the expanded Plan, by contrast, payments are now limited to the lesser of the MPS amount or an amount equal to the private school's operating costs per pupil, as determined by the Department of Public Instruction. *See* 1995 Wis. Act 27, § 4005; Wis. Stat. § 119.23(4).

Third, the expanded Plan ensures that no participating student is forced to participate in any religious activity, by providing an explicit opt-out right. *See id.* at § 4008e; Wis. Stat. § 119.23(7)(c).

Finally, the expanded Plan also includes an additional safeguard—a further guarantee that no public funds flow directly to private schools. Accordingly, under the expanded Plan, tuition checks are made payable by the State Superintendent directly to the parent or guardian. *See id.* 1995 Wis. Act 27, § 4006m; Wis. Stat. § 119.23(4). The Department of Public Instruction mails the checks to the private school designated by the parent, but only as a result of the parent first having selected that school from the array of available choices. And, even after the check arrives at the school, the school receives no state funding until the parent actually endorses the check. *Id.*

II. Prior Proceedings and Disposition.

Shortly after the original Choice Plan was enacted in 1989, opponents of school choice programs—including several of the Petitioners who are now before this Court—filed suit to enjoin the Plan on various state constitutional grounds. The Supreme Court of Wisconsin ultimately rejected their challenge to the original Plan. *Davis v. Grover, supra.*

When the legislature enacted the 1995 Amendments, school choice opponents once again promptly sought to enjoin implementation of the expanded Choice Plan. The present litigation thus began on August 1, 1995, when two groups of plaintiffs—Petitioners Warner Jackson, *et al.* ("ACLU"), and Petitioners Milwaukee Teachers Educational Association, *et al.*—filed complaints in the Circuit Court of Dane County, Wisconsin, challenging the expanded Plan on a host of constitutional grounds.[3] To the various state-constitution-based, non-religion-clause claims that Petitioners had advanced in their attempt to defeat the original Plan, Petitioners now added (1) a claim under the Establishment Clause of the First Amendment to the federal constitution, and (2) a similar claim based on Art. I, § 18 of the Wisconsin Constitution,[4] contending that the expanded Choice Plan impermissibly conferred a "benefit" on religious institutions.

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[3] Petitioners NAACP, *et al.* later filed a separate action challenging the expanded Plan, adding a claim under the Equal Protection Clause of the Fourteenth Amendment. The state supreme court dismissed the equal protection claim, *see* Pet. App. 56a, and Petitioners have not sought review of that aspect of the decision below. *See* Pet. at 6 n.2.

[4] Art. I, § 18 of the Wisconsin Constitution provides, in relevant part, that "[no person shall] be compelled to attend, erect or support any place of worship, or to maintain any ministry, without consent; nor shall . . . any preference be given by law to any religious establishments or modes of worship; nor shall any money be drawn from the treasury for the benefit of religious societies, or religious or theological seminaries."

After receiving Petitioners' complaints, the State—acting on relation of Governor Thompson—commenced an original action in the Supreme Court of Wisconsin, seeking a declaration that the expanded Choice Plan was constitutional. The state supreme court accepted original jurisdiction, and on March 29, 1996, announced that it had deadlocked 3-3 on the constitutional issues (with the seventh Justice not participating). *See* Pet. App. 189a-191a. Having divided equally, the state supreme court dismissed the petition, effectively remanding the case to the Circuit Court of Dane County for further proceedings. *Id.* at 191a.

In January 1997, the circuit court granted summary judgment for Petitioners. *See* Pet. App. 138a-188a. The court concluded, *inter alia*, that "by permitting religious schools to participate in the program," the expanded Plan violated Art. I, § 18 of the Wisconsin Constitution. *Id.* at 169a. Having found the expanded Plan invalid on state grounds, the circuit court did not reach the Establishment Clause issue.

The court of appeals affirmed by a 2-1 vote. *See* Pet. App. 59a-137a. Like the circuit court, the court of appeals "conclude[d] that the amended program violates the religious benefit clause of Article I, section 18 of the Wisconsin Constitution," *id.* at 61a, and therefore found it "unnecessary to address" Petitioners' Establishment Clause challenge, *id.* at 87a. Although it did not formally rule on the Establishment Clause issue, the court of appeals "consult[ed] United States Supreme Court [Establishment Clause] cases applying the 'primary effect' test" in conducting its Art. I. § 18 analysis. *Id.* at 80a. Relying exclusively on *Nyquist*, the court found that the "primary effect" test did "not undermine" its conclusion that the expanded plan was invalid under Art. I, § 18. *Id.*

The Supreme Court of Wisconsin granted Petitions for Review, and, by a 4-2 margin,[5] reversed the court of appeals' ruling and rejected *all* of Petitioners' various challenges to the expanded Plan.

The state supreme court rejected Petitioners' Establishment Clause claim following a thorough review of this Court's jurisprudence. *See* Pet. App. 11a-31a. The court analyzed the expanded Choice Plan's constitutionality under the *Lemon* framework, explaining that "[w]hile the continued authority of the test established in *Lemon v. Kurtzman*, 403 U.S. 602 (1971), is uncertain, we have no choice but to apply it in this case." Pet. App. 14a n.5. Disposing of the "secular purpose" and "excessive entanglement" inquiries in fairly short order, *see id.* at 14a-15a, 29a-31a, the court devoted the bulk of its analysis to the issue on which the parties had focused, namely whether the expanded Choice Plan would "have the primary effect of advancing religion," *see id.* at 15a-28a.

To answer that question, the Wisconsin court canvassed 50 years of this Court's Establishment Clause rulings. From that body of law, the court "distill[ed] . . . an underlying theory based on neutrality and indirection: state programs that are wholly neutral in offering educational assistance directly to citizens in a class defined without reference to religion do not have the primary effect of advancing religion." Pet. App. 16a-17a (footnotes omitted). With respect to *neutrality*, the Wisconsin court noted that ever since *Everson v. Board of Educ.*, 330 U.S. 1 (1947), "[t]he Supreme Court has historically looked to whether a program is neutral toward religion in defining its beneficiaries." Pet. App. 16a n.6 (citing *Everson*; *Bowen v. Kendrick*, 487 U.S. 589 (1988); *Roemer v. Md. Bd. of Public Works*, 426 U.S. 736 (1976); *Hunt v. McNair*, 413 U.S.

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[5] The two dissenting Justices would have invalidated the expanded Plan under Art. I, § 18 of the state constitution. They did not address the Establishment Clause issue. *See* Pet. App. 58a.

734 (1973); *Tilton v. Richardson*, 403 U.S. 672 (1971); *Board of Educ. v. Allen*, 392 U.S. 236 (1968)). And with regard to the principle of *indirection*, the Wisconsin court observed that this Court has traditionally "also focused on whether public aid that flows to religious institutions does so only as a result of 'genuinely independent and private choices of the aid recipients.'" Pet. App. 16a-17a n.7 (citing *Witters v. Washington Dept. of Servs. for the Blind*, 474 U.S. 481 (1986); *Rosenberger v. Rector & Visitors of Univ. of Virginia*, 515 U.S. 819 (1995); *Mueller v. Allen*, 463 U.S. 388 (1983); *Board of Educ. v. Allen*; *Everson*).

Based on its review of the applicable precedents, the state court concluded that:

> The Supreme Court, in cases culminating in *Agostini*, has established the general principle that state educational assistance programs do not have the primary effect of advancing religion if those programs provide public aid to both sectarian and nonsectarian institutions (1) on the basis of neutral, secular criteria that neither favor nor disfavor religion; and (2) only as a result of numerous private choices of the individual parents of school-age children.

Id. at 25a.

The Wisconsin court then explained in detail why the expanded Choice Plan "is precisely such a program." *See id.* at 25a-28a. *First*, the court observed that the Plan "is in no way 'skewed toward religion.'" *Id.* at 26a (quoting *Witters*). Instead, it simply "provides a neutral benefit to beneficiaries selected on religious-neutral criteria," and therefore "neither leads to 'religious indoctrination,' . . . nor 'creates a financial incentive for students to undertake sectarian education.'" *Id.* at 27a (quoting *Agostini*, *Witters*, and *Zobrest*). *Second*, the court concluded that because state funds arrive at a private school only as a result of a parent's first having chosen that

school—and because, even then, the funds take the form of a check made out to the parent (to "be cashed only for the cost of the student's tuition")—"[a]ny aid provided under the [expanded Choice Plan] that ultimately flows to sectarian private schools . . . does so 'only as a result of genuinely independent and private choices of aid recipients.'" *Id.* at 27a (quoting *Witters*).

Significantly, the court expressly considered, and rejected, Petitioners' contention that *Nyquist* required the invalidation of the expanded Choice Plan.

As an initial matter, the court noted that "*Nyquist specifically reserved the issue* whether an educational assistance program that was both neutral and indirect would survive an Establishment Clause challenge." Pet. App. 19a (emphasis added). As the Wisconsin court noted, this Court in *Nyquist* declined to decide whether "'a case involving some form of public assistance (*e.g.*, scholarships) made available generally without regard to the sectarian-nonsectarian, or public-nonpublic nature of the institution benefited'" would come out differently than *Nyquist*. *Id.* (quoting *Nyquist*, 413 U.S. at 782 n.38).

Next, drawing on its familiarity with the extensive array of educational options that the Wisconsin legislature has made available to MPS students, the court also emphasized what it termed "significant distinctions" between the tuition reimbursement program at issue in *Nyquist* and the expanded Choice Plan. *Id.* at 19a n.9. The court explained that:

> In *Nyquist*, each of the facets of the challenged program directed aid exclusively to private schools and their students. The [expanded Choice Plan], by contrast, provides a neutral benefit to qualifying parents of school-age children in Milwaukee Public Schools. Unlike the program in *Nyquist*, the only financially-qualified Milwaukee students excluded from participation in the

> [expanded Choice Plan] are those in the fourth grade or higher who are already attending private schools. The [expanded Choice Plan], viewed in its surrounding context, merely adds religious schools to a range of pre-existing educational choices available to MPS children. This seminal fact takes the [expanded Choice Plan] out of the *Nyquist* construct and places it within the framework of neutral educational assistance programs.

Id. *See also id.* at 26a ("The [expanded Choice Plan], in conjunction with existing state educational programs, gives participating parents the choice to send their children to a neighborhood public school, a different public school within the district, a specialized public school, a private nonsectarian school, or a private sectarian school. As a result, the amended program is in no way 'skewed toward religion.'") (footnote and citation omitted); *id.* at 26a n.16.

Having found the expanded Choice Plan permissible under the Establishment Clause, the court proceeded to reject the remainder of Petitioners' challenges to the Plan—challenges based on various state constitutional provisions, as well as the Equal Protection Clause of the Fourteenth Amendment. *Id.* at 31a-57a.

The Wisconsin Supreme Court's ruling not only restored the full array of educational options that the legislature had envisioned as the solution to the problems of MPS, but also restored a measure of predictability to MPS students for the first time in nearly three years. On August 25, 1995, shortly after accepting original jurisdiction, the supreme court had enjoined implementation of the expanded Choice Plan in its entirety. Although later narrowed by the circuit court to enjoin only those aspects of the Plan relating to sectarian school participation, that injunction had remained in place for nearly three full academic years. As a consequence, the intended beneficiaries of the expanded Choice Plan—namely, MPS students from low-income families—had been forced to

contend both with a reduced menu of educational choices, and with substantial uncertainty.[6] The decision below removed that cloud. Having "conclude[d] that the amended program is constitutional in its entirety," the state supreme court "order[ed] the circuit court to dissolve the injunction for all portions of the [expanded Choice Plan]." Pet. App. 56a.

REASONS FOR DENYING THE WRIT

I. The Supreme Court of Wisconsin Correctly Ruled That, Under This Court's Precedents, the Expanded Choice Plan is a Neutral and Indirect State Funding Program That Does Not Violate the Establishment Clause.

Contrary to Petitioners' claim, the court below did not decide the Establishment Clause issue "'in a way that conflicts with relevant decisions of this Court.'" Pet. at 9 (quoting Sup. Ct. Rule 10(c)). As the Wisconsin court recognized, this Court's Establishment Clause jurisprudence has long stressed two core principles: (1) the importance of *neutrality*, and (2) the need to avoid *direct government funding* of religion. It is now firmly established that government programs that provide benefits to sectarian and nonsectarian institutions alike, and do so only indirectly, do not have the "primary effect" of advancing or endorsing religion and do not violate the Establishment Clause. The expanded Choice Plan is such a

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[6] For example, when the state supreme court's injunction first issued, "thousands of children who were eligible for full tuition under the program already had enrolled in or begun attending their new private schools." Pet. App. 56a-57a. Faced with having to remove their children from their chosen schools, many parents were forced to seek interim private assistance to keep their children in those schools. *Id.* at 57a.

program, and the Wisconsin court's rejection of Petitioners' Establishment Clause claim therefore was correct.[7]

This Court's religion cases uniformly have stressed the importance of government neutrality toward religion. The neutrality principle has played a role in almost every effort to interpret the Establishment Clause, and to reconcile it with the Free Exercise Clause. *See, e.g., Everson v. Board of Educ.*, 330 U.S. 1, 18 (1947); *Board of Educ. v. Allen*, 392 U.S. 236, 243 (1968).

More recently, this Court has emphasized that a policy of "neutrality" under the Establishment Clause does not necessitate or justify the exclusion of sectarian institutions from benefits, programs or facilities that the government makes available to non-sectarian organizations. The Court has held, for example, that a public school that opens its facilities to secular institutions cannot simultaneously deny access to sectarian organizations. *See Lamb's Chapel v. Center Moriches Union Free Sch. Dist.*, 508 U.S. 384 (1993); *Board of Educ. v. Mergens*, 496 U.S. 226 (1990); *Widmar v. Vincent*, 454 U.S. 263 (1981); *see also Capitol Square Review & Advisory Bd. v. Pinette*, 513 U.S. 1106 (1995). Excluding sectarian groups in these circumstances "demonstrate[s] not neutrality but hostility toward religion." *Mergens*, 496 U.S. at 248.

In addition to neutrality, this Court repeatedly has emphasized the absence of direct government aid (or direct government control over the destination of funds) in upholding

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[7] The State recognizes that the Brief in Opposition is normally not the place for extensive argument on the merits. However, given that Petitioners' request for certiorari is bottomed on the allegation that the Wisconsin court's decision "conflicts with relevant decisions of this Court," Pet. at 9 (quoting S. Ct. R. 10(c)), the State believes that a detailed review of this Court's precedents (and the ways in which the decision below is entirely consistent with those precedents) is called for by way of rebuttal.

programs against Establishment Clause challenges. In its first decision applying the Establishment Clause to the States, the Court upheld a program that reimbursed parents for the cost of transporting their children to and from sectarian schools. *See Everson*, 330 U.S. at 17-18. And when the Court next considered government aid to sectarian schools, it upheld New York's policy of loaning textbooks to sectarian school students free of charge. *See Board of Educ. v. Allen*, 392 U.S. at 243-44. In approving this textbook loan program, the Court specifically noted that "no funds or books are furnished to parochial schools, and *the financial benefit is to parents and children, not to schools.*" *Id.* (emphasis added).

Later decisions of the Court have emphasized the indirect nature of the aid approved in these early cases. In *Lemon v. Kurtzman*, 403 U.S. 602, 621 (1971), for example, the Court observed that in *Everson* and *Board of Educ. v. Allen* "the Court was careful to point out that state aid was provided to the student and his parents—not to the church-related school." *Accord Roemer v. Md. Board of Public Works*, 426 U.S. 736 (1976); *Meek v. Pittenger*, 421 U.S. 349, 360-61 (1975) (upholding textbook loan provision).

But the Court's longstanding emphasis on neutrality and indirection as hallmarks of legislative initiatives that do not run afoul of the Establishment Clause was made most clear in a recent line of cases beginning with *Mueller v. Allen*, 463 U.S. 388 (1983). In *Mueller*, the Court approved a Minnesota statute that permitted parents to deduct expenses related to their children's education—including educational costs at private sectarian schools. In upholding the statute, the Court emphasized that "under Minnesota's arrangement public funds become available only as a result of numerous, private choices of individual parents of school-age children." *Id.* at 399. The Court concluded:

> The historic purposes of the clause simply do not encompass the sort of attenuated financial benefit,

> ultimately controlled by the private choices of individual parents, that eventually flows to parochial schools from the neutrally available tax benefit at issue in this case.

Id. at 400.

The Court reaffirmed the importance of individual choice and indirect aid three years later in *Witters v. Washington Dept. of Servs. for the Blind*, 474 U.S. 481 (1986). *Witters* upheld Washington's grant of state money to a blind student so that he could receive theological training at the Inland Empire School of the Bible. Justice Marshall, writing for a unanimous Court, stressed that "[a]ny aid provided under Washington's program that ultimately flows to religious institutions does so only as a result of the genuinely independent and private choices of aid recipients." *Id.* at 488. *See also id.* at 490-91 (Powell, J., concurring) (emphasizing this point); *id.* at 493 (O'Connor, J., concurring) (same). The Court observed that when individuals, rather than the government, determine whether (and how much) money flows to a sectarian organization, the effect is no more constitutionally troubling than when a government employee donates his paycheck to his church or synagogue. *See id.* at 486-88.

The Court again emphasized the core principle of indirection in *Zobrest v. Catalina Foothills Sch. Dist.*, 509 U.S. 1 (1993). In *Zobrest*, the Court upheld the government's provision of an interpreter for a student in a sectarian school. The Court characterized the statute at issue as "a neutral government program dispensing aid not to schools but to individual handicapped children," *id.* at 13, even though, as a formal matter, the government, not the parents, directly paid for the cost of the interpreter, *see id.* at 13-14 & n.11. The dispositive factor in *Zobrest* was that the sectarian school would not have received any benefit but for the parents' intervening choice. "[A]ny attenuated financial benefit that parochial schools do ultimately receive from the [statute] is attributable to 'the

private choices of individual parents.'" *Id.* at 12 (quoting *Mueller*, 463 U.S. at 400).

The Court reaffirmed both the indirection and neutrality principles in *Rosenberger v. Rector and Visitors of Univ. of Virginia*, 515 U.S. 819 (1995). *First*, the Court noted that "a significant factor in upholding governmental programs in the face of Establishment Clause attack is their neutrality towards religion." *Id.* at 839. Second, all nine Justices reaffirmed that government funding that reaches sectarian institutions indirectly, and through a neutral program, does not raise Establishment Clause concerns. *See id.* at 838-40; *id.* at 880-81 (Souter, J., dissenting). The question that divided the Court in *Rosenberger* was whether the aid at issue was "direct" or "indirect" as the Court had used those terms in earlier cases. Under the University of Virginia's program, student publications did not receive funds directly from the University; instead, the University paid the money to a printer at the direction of the publication. The majority concluded that this funding mechanism was sufficiently indirect. *See id.* at 841-45. The dissenters disagreed. *See id.* at 886 (Souter, J., dissenting). But it was common ground to all nine Justices that the funding would have been sufficiently indirect if there had been a "third party standing between the government and the ultimate religious beneficiary to break the circuit by its independent discretion to put state money to religious use." *Id.* (Souter, J., dissenting).

Petitioners attempt to make much of the fact that, in her separate concurrence, Justice O'Connor (who also joined the Court's opinion) stated that *Rosenberger* did not "trumpet[] the supremacy of the neutrality principle." 515 U.S. at 852 (O'Connor, J., concurring). But what Petitioners fail to mention is that Justice O'Connor in no way suggested that neutrality was not a central principle in Establishment Clause analysis, and indeed referred to it as a "bedrock principle[]." 515 U.S. at 847. Moreover, Petitioners conveniently ignore

Justice O'Connor's ultimate conclusion—that the funding provided by the University (which was not only neutral but *also indirect*) was furnished in a context that precluded any perception of government endorsement of a group's religious message. *Id.* at 849-51 (O'Connor, J., concurring). The same is true of the expanded Choice Plan. When a Choice Plan family, presented with an array of choices, elects to send its child to a private sectarian school, "'[n]o reasonable observer is likely to draw from the facts . . . an inference that the State itself is endorsing a religious practice or belief.'" *Id.* at 848 (O'Connor, J., concurring) (quoting *Witters*, 474 U.S. at 493 (O'Connor, J., concurring)).

This line of cases—*Mueller*, *Witters*, *Zobrest* and *Rosenberger*—thus stands for a critical proposition: The intervening autonomous choices of individuals eliminate the constitutional difficulties raised by *direct* government aid to sectarian schools. Factors that have proven fatal to direct government aid to schools lose their significance when government money flows to sectarian schools only as a consequence of the individual choice of a third party. For example, *Zobrest* approved aid to Salpointe Catholic High School even though the parties had stipulated that Salpointe was pervasively sectarian. *See* 509 U.S. at 4 & n.1; *id.* at 18-20 (Blackmun, J., dissenting).[8] Likewise, in *Witters*, the Court concluded that, when aid flows to religious organizations only

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[8] Petitioners' flaunting of the "pervasively sectarian" character of the sectarian Choice Plan schools, *see, e.g.*, Pet. at i, 4, 22, is therefore wholly misguided. As noted above, Salpointe Catholic High School was likewise "pervasively sectarian"—its "'distinguishing purpose'" was "'the inculcation in its students of the faith and morals of the Roman Catholic Church.'" *Zobrest*, 509 U.S. at 18 (Blackmun, J., dissenting). And in *Witters*, the Inland Empire School of the Bible was, of course, pervasively sectarian. Yet the fact that state funding reached those schools only on a neutral and indirect basis—as under the expanded Choice Plan—disposed of any constitutional objections to that funding.

as a result of private choices, objections based on the lack of restrictions on the recipient's use of the funds are "not apposite." *See* 474 U.S. at 489.[9]

The Court's decision two Terms ago in *Agostini v. Felton*, 117 S. Ct. 1997 (1997), reemphasized these themes. There, the Court overruled *Aguilar v. Felton*, 473 U.S. 402 (1985), observing that "Establishment Clause law has 'significantly changed'" in recent years, and that in particular "[w]hat has changed . . . is our understanding of the criteria used to assess whether aid to religion has an impermissible effect." *Id.* at 2017, 2010. In particular, the Court—citing *Witters* and *Zobrest*—noted that it had rejected the notion that "any and all public aid that directly aids the educational function of religious schools impermissibly finances religious indoctrination, even if the aid reaches such schools as a consequence of private decisionmaking." *Id.* at 2010-12. In addition, the Court observed that its recent Establishment Clause decisions focused on whether state aid "creat[es] a financial incentive to undertake religious indoctrination," or whether, instead, "the aid is allocated on the basis of neutral, secular criteria that neither favor nor disfavor religion, and is made available to both religious and secular beneficiaries on a nondiscriminatory basis." *Id.* at 2014. The Court explained that, pursuant to this principle of neutrality, it had "sustained programs that provided aid to all eligible children, regardless of where they attended school." *Id.* (citing, *inter alia*, *Mueller*, *Witters*, and *Zobrest*). Informed by these principles, the Court ruled that the Establishment Clause presented no barrier to New York City's Title I program ("a federally funded program

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[9] It is for this reason, among others, that Petitioners are mistaken in their casual assertion that the decision below conflicts with the precedents of this Court listed in footnote 11 of the Petition. Although this Court has required that *direct* state aid to religious institutions be accompanied by certain safeguards to ensure that the aid is not spent for religious purposes, the Court has not required the same where (as here) the aid is *indirect*.

providing supplemental, remedial instruction to disadvantaged children on a neutral basis"), which the Court had found invalid in *Aguilar*. *Id.* at 2016.

The Court's Establishment Clause precedents, culminating in *Agostini*, thus confirm that programs that provide public aid to sectarian institutions (1) on a neutral basis and (2) only as a result of private decisionmaking do not have the "primary effect" of advancing religion, and therefore pass constitutional muster.

As the Wisconsin court correctly concluded, the expanded Choice Plan is precisely that sort of permissible program.

First, the Plan provides eligible parents with a neutral benefit—the ability to select the best possible educational opportunity for their children. Pet. App. 26a; *see also Davis v. Grover*, 166 Wis. 2d 501, 532, 480 N.W.2d 460, 471 (1992). In conjunction with other existing programs, the expanded Choice Plan gives eligible MPS parents the choice to send their children to "a neighborhood public school, a different public school within the district, a specialized public school, a private nonsectarian school, or a private sectarian school." Pet. App. 26a & n.16. *See also Agostini*, 117 S. Ct. at 2013 ("aid is provided to students at whatever school they choose to attend"). The Plan thus "creates no financial incentive for parents to choose a sectarian school." *Zobrest*, 509 U.S. at 10. Parental eligibility is determined by financial hardship, not religious affiliation. The eligibility of schools likewise is based on religion-neutral factors. By adding sectarian private schools to the battery of options, the recent amendments display the kind of neutrality the Court repeatedly has endorsed. *See, e.g., Board of Educ. v. Mergens*, 496 U.S. 226, 248 (1990) (excluding sectarian groups from general program "demonstrate[s] not neutrality but hostility toward religion"); *Capitol Square Review & Advisory Bd. v. Pinette*, 513 U.S. 1106 (1995).

Second, while the Plan gives *eligible parents* a direct benefit, any benefit that flows to particular sectarian institutions as a consequence of parental choices is indirect and incidental. As with the programs at issue in *Mueller*, *Witters* and *Zobrest*, not one cent flows from the State to a sectarian school under the Choice Plan except as a result of the necessary and intervening choices of individual parents. Participating parents and students are the "third party standing between the government and the ultimate religious beneficiary," *Rosenberger*, 515 U.S. at 884-86 (Souter, J., dissenting). They, not the State, determine how much money will flow to which private schools.[10]

In sum, the 1995 amendments to the Choice Plan simply add sectarian schools on a neutral basis to the list of educational options available to financially-strapped parents in Milwaukee. That action, far from violating the Establishment Clause, "follows the best of our traditions." *Zorach v. Clauson*, 343 U.S. 306, 314 (1952). Because the expanded Choice Plan bears the hallmarks of neutrality and indirection, the Supreme Court of Wisconsin did not decide an issue in a way that conflicts with this Court's precedents when it ruled that the expanded Plan does not violate the Establishment Clause.

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[10] As is true of their misguided focus on the "pervasively sectarian" nature of the sectarian schools participating in the expanded Choice Plan, *see supra* at n.8, Petitioners' oft-repeated claim that private schools would receive "millions of dollars" under the Plan, *see, e.g.*, Pet. at i, 3, 5, 22, is beside the point. This Court's precedents make clear that sectarian institutions can receive even "very substantial[]" benefits from the State, as long as those benefits are provided on a neutral and indirect basis. *Mueller*, 463 U.S. at 396 n.5. Similarly, although Petitioners point accusatorially to the possibility that Choice Plan payments to private sectarian schools will exceed tuition (but not exceed the *cost* of the education), Petitioners are unable to articulate a theory as to why that would be constitutionally significant.

II. This Case Is a Poor Vehicle for Resolving Whether *Nyquist* Remains "Good Law."

At bottom, Petitioners' argument for certiorari is that the decision below cannot be squared with *Nyquist*. "Seen through the lens of *Nyquist*," they assert, "this is an open-and-shut case on the merits." Pet at 15. Petitioners maintain, therefore, that "it is time for this Court to say clearly whether or not [*Nyquist*] still is good law." *Id.* at 16. *See also id.* at i (presenting question whether *Nyquist* "continue[s] to state the law").

The question of the degree to which *Nyquist* remains a significant precedent is indeed of great academic interest and practical importance. Some of the Court's discussion in *Nyquist* indeed appears in tension with more recent Establishment Clause rulings; and, to the extent that *Nyquist* is in conflict with those later rulings, the State believes that it is a precedent that should be viewed as having been limited to its facts, if not implicitly overruled. *Cf. Agostini*, 117 S. Ct. at 2017 ("Establishment Clause law has 'significantly changed'" in recent years); *id.* at 2010 ("[w]hat has changed . . . is our understanding of the criteria used to assess whether aid to religion has an impermissible effect."). This Court would certainly provide a valuable service by clarifying whether *Nyquist* remains a significant precedent today, given the regularity with which opponents of school choice invoke *Nyquist* (expressly or implicitly) in legislative debates and lawsuits seeking to enjoin school choice laws. And, of course, only this Court has the power to declare that *Nyquist* no longer constitutes "good law." *See id.* at 2017.

But although the State agrees that much would be gained by this Court's resolving the question whether *Nyquist* has indeed been eclipsed by more recent Establishment Clause rulings, this case is a poor vehicle for such resolution. This is so because the Supreme Court of Wisconsin did not dispute that *Nyquist* remains "good law"; instead, the state court simply found the

expanded Choice Plan distinguishable, in relevant respects, from the New York program at issue in *Nyquist*.

That finding was correct, as the two programs differ in numerous and important ways.

First, as the Wisconsin court recognized, "[i]n *Nyquist*, each of the facets of the challenged program directed aid *exclusively to private schools* and their students." Pet. App. 19a n.9 (emphasis added). The expanded Choice Plan, by contrast, "provides a neutral benefit to qualifying parents [of MPS students]," because, "*viewed in its surrounding context*," it "merely adds religious schools to a range of pre-existing educational choices available to MPS children." *Id.* (emphasis added). Invoking its familiarity with the range of educational options available to MPS students, the Court described the relevant context in which the Choice Plan must be considered:

> According to the stipulated facts in this case, the State's system of public per-pupil school financing, in which public funds follow each child, now encompasses a wide range of school choices—mainly public, but some private or religious. Numerous programs have amended the number and type of educational options available to public school students. Qualifying public school students may choose from among the Milwaukee public district schools, magnet schools, charter schools, suburban public schools, trade schools, schools developed for children with exceptional needs, and now sectarian or nonsectarian schools participating in the [expanded Choice Plan].

Id. at 26a n.16.

This distinction is critical, because *Nyquist expressly reserved* the question whether "a case involving some form of public assistance (e.g., scholarships) made available generally without regard to the sectarian-nonsectarian, or public-nonpublic nature of the institution benefited" would come out differently. *See* 413 U.S. at 782 n.38. As the Wisconsin court

correctly determined, this is just such a case—involving a truly neutral form of public assistance, and thus presenting a question not addressed by *Nyquist*.

Second, and relatedly, the two laws are decidedly different in their goals. At issue in *Nyquist* was a multifaceted school aid program, the purpose of which was unmistakably and avowedly to assist New York's private schools. *See, e.g.*, 413 U.S. at 783 ("the effect of the aid is unmistakably to provide *desired* financial support for nonpublic, sectarian institutions") (emphasis added); *cf. id.* at 756 ("maintenance and repair grants" to private schools in *Nyquist* were designed to remedy a "fiscal crisis in nonpublic education"). (Petitioners are, therefore, mistaken in their contention that the asserted justifications for the New York law "are essentially the same justifications that have been advanced" in support of the expanded Choice Plan, Pet. at 11.) To judge by this Court's repeated references to the goals of the *Nyquist* law, the fact that that law was enacted with the express purpose of aiding private schools (the vast majority of which were sectarian) played a significant role in the Court's conclusion that the law violated the Establishment Clause. By contrast, it is plain from the context in which the expanded Choice Plan was enacted that the design of the Plan is not to help private schools through a "crisis," but rather to improve the educational opportunities available to Milwaukee's poorest and most disadvantaged students.[11]

Third, the targeted nature of the Choice Plan also distinguishes it from the statute struck down in *Nyquist*. The New York scheme provided benefits to low-income and middle-class parents of sectarian school children across the

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[11] Indeed, given that school choice programs use competition to bring about improvements in schools, it is possible that private schools will suffer, not prosper, under the expanded Choice Plan (if the public schools respond more effectively to competition than do the private schools).

state. The Wisconsin Plan, by contrast, provides benefits only to low-income parents in Wisconsin's most troubled school district.

Fourth, the *Nyquist* Court emphasized that the New York statute placed no restrictions on private schools. *See* 413 U.S. at 782-83. The Choice Plan, by contrast, requires that participating schools select students without regard to religious affiliation and permits choice students to opt out of religious activities. *See supra* at 6.

For these and other reasons, the Wisconsin court was correct to conclude that the expanded Choice Plan is distinguishable from the tuition reimbursement program invalidated in *Nyquist*. Because the facts and context of this case are distinguishable from those of *Nyquist*, this case does not present a fitting opportunity for this Court to declare "whether or not [*Nyquist*] still is good law." Rather, this case merely presents yet another opportunity (much like the opportunity presented by *Mueller*, *Witters* and *Zobrest*) for the Court to clarify the degree to which whether certain *dictum* and intimations in *Nyquist* have application outside the specific facts of that case.

That unremarkable opportunity, however, does not appear to be what Petitioners are seeking. Rather, as the Petition makes clear, Petitioners are seeking nothing less than a definitive ruling from this Court as to whether *Nyquist* "still is good law" or instead has been overruled. *See* Pet at 21-22 (asking Court to "reaffirm *Nyquist* now" or "overrule it now"). If that is indeed Petitioners' goal in seeking this Court's review, then the State respectfully suggests that this a far better vehicle for resolving that question would be a case in which a lower court (1) finds that the law being challenged, viewed in context, is *indistinguishable* from the law at issue in *Nyquist*, and (2) declares that although the law appears permissible under the neutrality-and-indirection case law, the court is constrained to follow *Nyquist* and therefore declare the law invalid.

It bears emphasizing that this Court was confronted with this sort of lower court ruling in *Agostini*. *See Agostini*, 117 S. Ct. at 2006 (describing district court's order, which stated "'[t]here may be good reason to conclude that *Aguilar*'s demise is imminent,'" but nonetheless denied Rule 60(b) motion on merits "because *Aguilar*'s demise had 'not yet occurred.'") (citations omitted). In a case where the lower court's decision met that description, the issue of *Nyquist*'s continuing validity would be squarely presented to this Court. Equally important, a ruling by this Court as to the validity of *Nyquist* would, in such circumstances, *necessarily* dictate whether the lower court decision would be upheld or reversed (which cannot be said in this case).

As Petitioners have noted, *see* Pet. at 22 and 21 n.18, the high courts of Arizona, Maine, Ohio and Vermont are presently considering similar challenges to those states' school choice programs.[12] It is possible that one of those courts will issue a ruling along the lines described above—*i.e.*, one that presents the *Nyquist* issue in its pristine form. That possibility (coupled with the current absence of a current lower court conflict on the constitutionality of school choice, *cf.* S. Ct. R. 10(b)) presents an additional reason for this Court to deny the Petition and await a later opportunity to address the constitutionality of school choice programs.[13]

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[12] *See Kotterman v. Killian*, No. CV-97-0412 SA (Ariz. (original action), filed Sept. 29, 1997); *Bagley v. Maine Dep't of Educ.*, No. CV-97-484 (Me. Superior Ct. Apr. 20, 1998), *appeal pending*, No. CUM-98-281 (Me.); *Simmons-Harris v. Goff*, No. 96APE08-982, 1997 WL 217583 (Ohio Ct. App., May 1, 1997), *appeal pending*, No. 97-1117 (Ohio); and *Chittenden Town Sch. Dist. v. Vt. Dep't of Educ.*, No. S0478-96 RcC (Vt. Superior Ct., Rutland Cty., June 27, 1997), *appeal pending*, No. 97-275 (Vt.). The much earlier state cases cited in footnote 12 of the Petition are of little relevance to the issue at hand, as all four predate *Mueller*.

[13] By the same token, if these other state courts follow the lead of the (continued...)

In short, the interesting, and important, issue of the continuing validity of *Nyquist* is one that is not squarely presented in this case, given the Wisconsin court's conclusion that the *Nyquist* law is distinguishable from the expanded Plan. Accordingly, the State respectfully suggests that this Court would benefit by awaiting a ruling by another lower court that more cleanly presents the *Nyquist* issue.[14]

CONCLUSION

The petition for writ of certiorari should be denied.

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[13] (...continued)
Wisconsin court and reject *Nyquist*-based Establishment Clause challenges to the various choice plans, then the need for this Court to "clarify" the status of *Nyquist* in this context will be greatly diminished.

[14] In response to Petitioners' Supplemental Brief in Support of the Petition for Certiorari, filed on September 23, 1998, the State has no objection to this Court's treating the Petition as if it had been filed on September 1, 1998 (rather than the previous day), if this Court deems such treatment necessary to avoid any jurisdictional concerns. In any event, the State does not view the Wisconsin court's September 1 order (or the Motion for Clarification that was dismissed by that order) as affecting the finality or reviewability of the Wisconsin court's June 10 judgment.